NATIONAL COMPANY LAW TRIBUNAL
INDORE BENCH AT AHMEDABAD

Date: 16|12|2021

CP (CAA) 127 of 2018 in CA (CAA) 66 of 2018
(Sections 230-232 of the Companies Act, 2013)

Puma Plastopack Private Limited	..... Petitioner (Transferor-1 Company)
Narshing Corrugators Private Limited	..... Petitioner (Transferor-2 Company)
Shriji Corrugator (Mandideep) Private Limited	..... Petitioner (Transferor-3 Company)
Shree Packers (MP) Private Limited	..... Petitioner (Transferee Company)

For Clarification

The instant Company Petition was heard and reserved for order.

On perusing the record, it is found that the Regional Director, MCA (RD) in its report dated 17th September 2018 submitted the petitioner companies served the notice in compliance to the order dated 16.07.2018 of this Tribunal under Section 230 (5) of the Companies Act, 2013, which was not signed by the Authorized Signatory of the Petitioner Companies. Hence, the RD treated that notice as invalid notice. The RD is also praying to this Tribunal not to treat this representation in compliance of Section 230 (5) of the Companies Act, 2013.

It is further noted that the Registrar of Companies (RoC) in its report dated 30.11.2018 to the RD also observed that the petitioner companies sent notice to the RoC, which had not duly annexed the required annexures, i.e. Annexure-1 to 37, which are necessary to file the observation for the proposed Scheme.

The RD has sent a letter dated 14.08.2018 to the petitioner companies for serving the notice duly signed by the authorized signatory of the petitioner companies. However, on reply to the observation of the RD, the petitioner companies have submitted that no such letter was received from the RD for servicing the notice duly signed by the Authorized Signatories of the petitioner companies.

The RD has also stated in its report that, RoC could not submit its report to the RD for the proposed Scheme in absence of serving of proper notice under Section 230 (5) of the Companies Act, 2013, along with annexures therewith. Hence, the RD is not able to file the complete report before this Tribunal for the proposed Scheme.

We are of the considered view that the notice to the RD & RoC is required to be served with duly signed by the authorized signatories along with all annexures for proper representation for the proposed Scheme which is mandatory. The report of RD and RoC is necessary for sanctioning of the proposed Scheme. Hence, we direct the petitioner companies to serve notice under Section 230(5) of the Companies Act, 2013 to the Regional Director and Registrar of Companies duly signed by the authorized signatory of the petitioner companies with requisite annexures and file affidavit of service within seven days. RD and RoC may file their report / representation, if any, within 30 days from the date of receipt of notice from the petitioner companies.

In view of the above, we release this matter for clarification. List this matter for clarification on 22/12/2021

(AJAI DAS MEHROTRA)
MEMBER (TECHNICAL)

MADAN B GOSAVI
MEMBER (JUDICIAL)

Ramashish /LRA